

9:00 AM

Line 3

25-CIV-00184 MARIA J. MIRANDA HENAO VS. TOYOTA MOTOR SALES, U.S.A., INC.

MARIA J. MIRANDA HENAO
TOYOTA MOTOR SALES, U.S.A., INC.

DONALD E MAHNKE
MICHAEL J HURVTIZ

Defendant's Motion to Compel Plaintiff's Deposition and Request for Sanctions

TENTATIVE RULING:

Defendant Toyota Motor Sales, U.S.A., Inc.'s ("Toyota") Motion to Compel Plaintiff's Deposition and Request for Sanctions is GRANTED.

Summary of Facts

This is an automotive warranty action where Plaintiff Maria J. Miranda Henao ("Plaintiff") seeks restitution for a 2024 Toyota RAV4 (the "Subject Vehicle") pursuant to the Song-Beverly Consumer Warrant Act. Plaintiff filed this action on January 9, 2025. On February 27, 2025, Defendant Toyota served a Notice of Deposition for Plaintiff's deposition for April 30, 2025. Critchlow Decl., ¶ 2, Exh. A. On April 23, 2025, Plaintiff served objections. Critchlow Decl., ¶ 3, Exh. B. Thereafter, Defendant attempted to meet and confer at least on six different occasions, where Plaintiff inexplicably did not respond. Critchlow Decl., ¶¶ 4-8, 11, Exh.'s C and E.

After the filing of the Motion, an Informal Discovery Conference ("IDC") was held before the Civil Commissioner. Relevantly, at the IDC Plaintiff finally agreed that the deposition could be scheduled for November 17, 2026 and the vehicle inspection for December 10, 2026. Minute Order, 08/11/2026. However, Defendant maintained these motion to ensure compliance and to seek sanctions. The motion is unopposed.

Legal Discussion

A party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action. Code of Civil Procedure ("CCP") Section 2017.010(a). For discovery purposes, information should be regarded as "relevant to the subject matter" if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288, emphasis added.); *in accord*, *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.

As Plaintiff has already agreed to her deposition on a date certain, the motion is GRANTED and Plaintiff is now ORDERED to appear for her deposition on November 17, 2026.

Where a motion to compel a deposition is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. Section 2025.450(g)(1).)

Defendant has requested monetary sanctions for having to bring this motion, and sanctions are allowed under the code but are in the discretion of the Court. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791. “The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Id.* at 791(citations omitted). Nevertheless, the court is authorized to award as sanctions the moving party's “reasonable expenses,” including attorney fees for time spent in research and preparation of the motion and court time in connection with the motion. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) The discovery motions were accompanied by a proper declaration of counsel establishing the claim for attorney’s fees and costs, at reasonable hourly rates.

Defendant requests monetary sanctions of \$750.00 jointly and severally against Plaintiff and its counsel Quill & Arrow, LLP, which is reasonable, and which sanctions are now GRANTED to be paid to Defense counsel within 30 days of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-02117 CONSUELO QUO VS. PRENUVO CLINIC CA 1, ET AL

CONSUELO QUO
PRENUVO CLINIC CA 1

JOSHUA S. MARKOWITZ
ALEXANDRA N. PAPLOS

Plaintiff's Motion for Trial Preference

TENTATIVE RULING:

Plaintiff Consuelo Quo's Motion for Trial Preference is GRANTED pursuant to Cal. Code of Civ. Proc. ("CCP") Section 36(a).

Cal. Code of Civ. Proc. Section 36 establishes a mandatory trial preference for civil actions where a plaintiff is over 70 years of age, has a substantial interest in the action and the health of the party is such that a preference is necessary to prevent prejudice. CCP § 36(a)(1-2). Here, Plaintiff's daughter's declaration establishes that Plaintiff is 93 years old. Stacey Quo Decl, ¶ 2.

In addressing this statutory language for a preference motion under Section 36(a) for parties over 70 years of age, courts have consistently held the statutory preference to be "mandatory and absolute." (See, e.g., *Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082.) California courts have emphasized that such mandatory preferences represent "a substantive public policy concern which supersedes" considerations of court convenience or other litigants' interests. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689. The trial court has no discretion to balance competing interests when a party qualifies for mandatory preference. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529.).

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party."

CCP § 36(f).

Per the express statutory language and case precedent, this Court does have the full 120-day period as to when to set the trial date. CCP § 36(f); *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 93 ("section 36, subdivision (e) allows the trial court to set a trial date up to 120
